



Income Tax Department

Ministry of Finance, Government of India

2.—Appeals to Appellate Tribunal.

Appellate Tribunal.

361. (1) The Central Government shall constitute an Appellate Tribunal consisting of as many Judicial and Accountant Members as it thinks fit, to exercise the powers and discharge the functions conferred on the Appellate Tribunal by this Act.

(2) Irrespective of anything contained in this Act, the qualifications, appointment, term of office, salaries and allowances, resignation, removal and the other terms and conditions of service of the President, Vice-President and other Members of the Appellate Tribunal appointed,—

- (a) after the commencement of the Tribunals Reforms Act, 2021 (33 of 2021), shall be governed by the provisions of Chapter II of the said Act;
- (b) before the commencement of Part XIV of Chapter VI of the Finance Act, 2017 (7 of 2017), shall be governed by the provisions of the Income-tax Act, 1961 (43 of 1961) and the rules made thereunder, as if the provisions of section 184 of the Finance Act, 2017 (7 of 2017) had not come into force.

(3) The Central Government shall appoint—

- (a) a person who is a sitting or retired Judge of a High Court and who has completed not less than seven years of service as a Judge in a High Court; or
- (b) one of the Vice-Presidents of the Appellate Tribunal,

to be the President thereof.

(4) The Central Government may appoint one or more members of the Appellate Tribunal to be the Vice-President or, Vice-Presidents thereof.

(5) The Vice-President shall exercise such of the powers and perform such of the functions of the President as may be delegated to him by the President by a general or special order in writing.

